

Data Controller (66.0%), Legal Basis (91.0%), Processing (87.8%), Recipient (60.6%), Retention (77.2%):

INTRODUCTION 1.1 The STIB-MIVB company The SociAtA des Transports Intercommunaux de Bruxelles (hereinafter referred to as "STIB-MIVB"), registered in the Register of Legal Entities under the company number 0247.499.953 and headquartered at 1000 - Brussels, 76, Rue Royale, is an association of public law in charge of the operation of the urban public transport services within the Brussels-Capital Region.

Contract (81.0%), Legal Basis (88.7%):

Its organisation and the organisation of its activities are ruled by the ordinance of 22 November 1990 with regard to the public transport organisation of the Brussels-Capital Region and to its implementation decrees, by its management contract, by its tender, by the Government's decisions and its different management bodies as well as by the applicable legislation and regulation of the public transport in the Brussels-Capital Region, especially regarding the ticket inspection.

Consent (69.5%), Third Party (92.1%):

The STIB-MIVB transport service also depends on the agreements reached with the authorities and the operators of the other public transport networks which STIB-MIVB operates with interoperably.

Data Controller (99.0%), Legal Basis (70.5%), Personal Data (62.7%), Processing (96.1%), Required Purpose (65.0%), Technical Measure (84.2%), Third Party (88.0%):

terms-and-conditions-release-2-2 Terms & Conditions Privacy Notice en nlf TERMS AND CONDITIONS OF USE OF THE STIB-MIVB MOBILE APPLICATIONa Last updated: 26/01/2021 Application version: 2.4 1.

Data Subject (84.4%), Processing (76.6%), Right (97.4%):

1.2 Terms and conditions of use The present terms and conditions of use, concluded between STIB-MIVB and any user aim at determining the terms of use of the STIB-MIVB mobile application and at defining the rights and obligations of both STIB-MIVB and the user within this context.

Art. 17 Right to erasure (right to be forgotten) (89.0%), Organisational Measure (77.5%):

if the user does not wish to accept the present terms and conditions of use or an updated version, we ask him not to access the application (anymore) and to delete it.

Personal Data (99.6%), Right (83.2%):

All the personal data protection conditions are defined in the paragraph personal data of the present terms and conditions of use and also apply to any use of the application, which the user accepts without reservation or condition.

Non-Personal Data (91.0%):

the content, the software, the programs, the (programming, navigation, ...) tools, the databases, the operating systems, the documentation and all other elements and services composing it, the STIB-MIVB updates and new versions of the app.

Required Purpose (91.5%):

aUser Account: describes the digital identification created by a user in order to manage their preferences and to obtain personalised information from STIB-MIVB according to their personal use.

Data Subject (75.4%), Processing (96.5%):

Any anonymous user using the app without a user account will have access to all the STIB-MIVB travellers information but without personalisation, which will restrict the STIB-MIVB services of the app, but also guarantee that STIB-MIVB will not store nor process personal data in its databases through the app.

Processing (91.9%):

Only the app will be able to give information according to the user's actions, without storing them.

Processing (98.5%):

This information will thus be stored and processed by STIB-MIVB in accordance with the conditions described in the present terms and conditions of use.

Processing (99.3%):

user identified through their user account) agreement to the processing of personal data relating to him or her, by a statement or by a clear affirmative action.

Personal Data (97.0%), Required Purpose (65.0%):

aPersonal data: Any information relating to an identified or identifiable natural person; an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural or social identity of that natural person.

Retention (93.7%):

The adhesion to the app is underwritten for an unlimited period from the moment of its installation until the user decides to delete the app from their mobile terminal.

Retention (73.9%):

If the user does not accept these TCU without reservation or condition, they are asked to stop using the app and to delete it from their mobile terminal.

Data Subject (63.8%):

The use of the app is restricted to natural persons, except from companies, associations or groups.

Processing (86.6%):

The subscription to the app and the associated offers are strictly personal: they cannot be sold, nor transferred and do not constitute a means of settlement.

Consent (82.0%), Required Purpose (88.5%):

STIB-MIVB will only use the personal data within the limits of the user's consent and within the extent necessary to the proper functioning of the app and, more specifically, of the functionalities chosen by the user.

Non-Personal Data (89.1%), Third Party (86.2%):

Use of the application The purpose of the app is to make all the mobility solutions available from several public transport operators (TEC, De Lijn, SNCB-NMBS, STIB-MIVB) or from STIB-MIVB partners in a personalised way, in real time or with planned timetables.

Non-Personal Data (74.9%):

The app allows the user to access relevant information based on their journey habits, their position and the moment of use.

Personal Data (98.9%), Required Purpose (92.4%):

To make the authentication process more reliable, STIB-MIVB has adapted the size and the complexity of the password, in accordance with the recommendations of the W3C (World Wide Web Consortium).

Data Controller (73.9%):

Warning: the present document does not include the transport rules.

Non-Personal Data (85.1%), Personal Data (64.1%), Processing (68.1%):

However, any data which is not related to personal data processing will be made available, like on our website (non-exhaustive list): - Searching for an itinerary with multiple operators in Belgium from the departure point until the final destination and its visualisation on the map; - Obtaining real-time information of possible disruptions (lines) and of the waiting time at the stops (stops); - Obtaining theoretical information of the planned timetables of the other operators (SNCB-NMBS, De Lijn and TEC); - Obtaining information related to the disruptions on the lines or stops.

Third Party (68.3%):

altinerary: describes a journey between two locations and which will be effective when using the vehicles of one (or more) public transport operator(s) (SNCB-NMBS, De Lijn, TEC and STIB-MIVB).

Consent (61.4%), Personal Data (75.0%), Required Purpose (94.0%):

In the event the user has given their specific consent, in the app settings, they will have access to the following functionalities (non-exhaustive list): Access to the contact list of the mobile terminal in

order to be able to launch an immediate itinerary search from or to these addresses; Access to the mobile terminal calendar in order to be able to launch an immediate itinerary search to the addresses related to the calendar events; Access to the location in order to view relevant information pertaining to their location (e.g.: stops nearby, cursor on the map, etc.).

Personal Data (61.5%):

aFavouritesa: describes the useras favourite destinations.

Personal Data (96.9%), Processing (67.9%), Required Purpose (85.6%):

3.4 Terms of use with a user account identification In case the user identifies with an account, they will benefit from the following functionalities (non-exhaustive list): user profile management; buying digital tickets favourites (address) memorisation in order to launch an itinerary search directly towards this destination; displaying of disruption alerts based on the most frequently used lines and the useras location; history of the itinerary searches; notifications before leaving and starting an itinerary, or during a journey to alight from the bus, etc.; displaying and editing of information contained on a MOBIB card and purchase of tickets through a redirection to the website; in the event the user has given their specific consent, they will have access to the following functionalities (non-exhaustive list): collection of the most frequently used lines; app personalisation allowing the display of the most relevant information for the user (used lines, last itinerary searches, places visited, etc.); receiving of promotional offers for the STIB-MIVB services and products, newsletter, network information, season ticket renewal alerts, app updates or partner communications; etc.

Processing (98.4%), Required Purpose (61.1%):

An itinerary searched in the app, which then becomes a real journey, will enhance the user experience by displaying their user habits in the app, based on a time frame of a weekday (conditions: having a user account and having activated the location tracker and the preferences).

Personal Data (80.2%), Right (84.0%):

If you are the parent of a child under 13 years old and you notice that your child has provided STIB-MIVB with personal data, please contact our Customer Care, of which you will find the contact details in the paragraph aContacta of the present TCU and ask to assert your rights.

Organisational Measure (84.5%), Personal Data (92.4%):

In the event we find out that we have gathered the personal data of a child under 13 years old, we will take every reasonable measure to delete these personal data.

Organisational Measure (74.1%):

The French and Dutch versions of the present terms and conditions of use are the only official versions and shall therefore be the reference in the event of necessity of interpretation or suchlike.

Personal Data (84.7%):

In case of an identification, the user can log off or delete their identification at any moment, using the STIB-MIVB app options or the account options on the website www.stib-mivb.be, or by contacting the Customer Care referenced in the paragraph aContacta of the present document.

Art. 17 Right to erasure (right to be forgotten) (70.7%):

If a user deletes an identification, all their personal data that will have been stocked, will be deleted from the STIB-MIVB databases, in accordance with the European regulation 2016/679 of 27 April 2016 on data protection (Chapter III A Section 3 - Article 17 - Right to erasure: a right to be forgotten).

Required Purpose (66.5%):

By creating an account on the app, you can buy transport tickets and benefit from a personalised experience in order to optimise your journeys.

Required Purpose (97.9%):

More complete information on the processing of your personal data in order to offer you an optimised experience when using our transport options are provided hereunder: To what end?

Required Purpose (82.3%):

Adding personal touches can allow you to obtain information concerning your itinerary, disruptions on the transport network, specific announcements in case of evacuation of a station, publications to promote STIB-MIVB productsa Which data?

Consent (84.1%), Personal Data (80.1%), Processing (92.1%):

This data may be indirectly communicated to us if you choose to sign in using your Facebook or Apple account (which transfers in this case your identification data to us).

Processing (98.8%):

If you decide to use the app without signing in, no personal data will be saved in the STIB-MIVB databases.

Non-Personal Data (84.7%):

Some of your technical data will be saved by the partner who hosts our app.

Required Purpose (94.6%):

When you create and use a digital account, STIB-MIVB provides you with services to make your use of its network easier.

Personal Data (62.6%):

PERSONAL DATA STIB-MIVB attaches the utmost importance to protecting your data and your privacy.

Consent (81.5%):

Your consent is necessary for the use of your location.

Consent (62.2%):

This does neither include the mobile application user guide, which is available [here](#).

Personal Data (65.7%), Retention (94.3%):

Your identification data and your favourites are stored as long as your account is active.

Retention (93.2%):

Frequently used locations and lines are stored for a maximum duration of 18 months.

Organisational Measure (61.8%):

APPLICATION AVAILABILITY STIB-MIVB aims at making the app available 24 hours a day, 7 days a week, except in case of force majeure or of an event which STIB-MIVB has no control over and taking into account possible failures and maintenance interventions required for the proper functioning of the app, which are limited to a strict minimum, without giving right to any compensation.

Non-Personal Data (71.6%):

Whatas more, all the data regarding the timetables and the vehicle position are in line with reality but STIB-MIVB cannot be held accountable for a delay compared to the position in real time.

Legal Basis (89.5%), Required Purpose (94.9%):

STIB-MIVB reserves the right to change, at any moment, partially or completely, provisions of the TCU without prior notice or information to the users in order to adapt them to the services evolutions, to the technical, legal or jurisprudential evolutions.

Processing (84.7%):

Definitions For the execution of the present terms and conditions of use, the following words and acronyms from the text below are defined as follows: aAppa or aApplicationa: describes the STIB-MIVB mobile application edited and published by STIB-MIVB, which the user can download free of charge on their mobile terminal.

Processing (92.0%):

OPTIONS REQUIRED IN THE APP AND REGARDING PERSONAL DATA STIB-MIVB shall in no case be held accountable for a content of any nature that has been published, spread or transmitted by the user on the app by any means whatsoever.

Third Party (84.9%):

Finally, STIB-MIVB is in no case liable for malfunctions which can be attributed to third software.

Legal Basis (76.4%), Processing (84.4%), Third Party (94.4%):

APPLICATION USER OBLIGATIONS The user explicitly commits: to download and to use the app on their mobile terminal exclusively on a personal and non-commercial basis; to not reproduce, in a permanent or temporary way, the app nor the content, completely or partially, by any means and in any form; to not use software or processes meant to copy the content without a prior explicit written authorisation from STIB-MIVB; to not proceed to any adaptation, modification, translation, transcription, arrangement, compilation, decompilation, assembling, disassembling, transcoding, nor to apply reverse engineering, to use practices such as scraping or using robots in order to extract, reproduce the app, the services and/or the content completely or partially; to not export the app, nor to merge the app completely or partially with other IT programs; to only proceed to short quotations, analyses and reproductions destined for press reviews as well as for other uses explicitly authorised by law within its limits and conditions and in particular if the authors and the editorial source are quoted; to explicitly not use software or devices which could disrupt the proper functioning of the app; to not use the app in a way that could disrupt its proper functioning, nor to take action to impose a disproportionate charge on the STIB-MIVB infrastructures; to not extract or reuse, including for personal purposes, without prior explicit written authorisation from STIB-MIVB, a substantial part or not of the content of the databases and archives constituted by the app or that can be consulted through the app; to not set up systems that could hack the app and/or the content, completely or partially, or that could be a violation to the present TCU; to inform STIB-MIVB as soon as they are aware of a hacking action and, more particularly, of any illicit or non-contractual use of the app and/or of the content regardless of the transmission mode; to not communicate incorrect information or deliberately use the user account of another person (identity frauds); to not sell, lease, sublicense or distribute the app and/or the content in any way to third parties.

Legal Basis (90.1%):

Generally, the user undertakes to respect the applicable laws and regulations and to not adversely affect the rights of third parties.

Required Purpose (79.3%):

The user bears sole responsibility for any use of their credentials (such as their e-mail address) and password, and they are the sole guarantor of their confidentiality, as well as for any use of their user account.

Legal Basis (86.8%):

The provisions of the present TCU shall be interpreted as binding and enforceable under the applicable legislation.

Third Party (93.4%):

STIB-MIVB reserves the right to transfer all or part of its rights or obligations contained in the present TCU to a third party, without needing the user's consent.

Right (75.9%), Third Party (81.0%):

STIB-MIVB intends to respect the third party's intellectual property rights.

Right (63.6%):

The access to the app confers to the user a free, revocable, universal, unassignable and non-exclusive right to use and consult the app for non-commercial and strictly personal purposes, within the limits of the present TCU.

Personal Data (89.0%):

The elements available in the app, such as texts, photographs, images, icons, maps, sounds, videos, software, databases, data, its structures and the whole content in general are also protected by intellectual and industrial property rights and other private rights of STIB-MIVB.

Legal Basis (68.9%):

APPLICABLE LEGISLATION AND JURISDICTION These TCU, and more generally the contractual relation arising from the use of the app, are governed by the laws of Belgium.

Authority (68.3%):

Unless otherwise legally provided, in case of the impossibility of an out-of-court settlement, the judicial district of Brussels and the laws of Belgium shall have exclusive jurisdiction to settle any dispute or claim between STIB-MIVB and a user which might arise out of or in connection with these TCU.